



Vernon's Texas Statutes and Codes Annotated
Property Code (Refs & Annos)
Title 8. Landlord and Tenant (Refs & Annos)
Chapter 92. Residential Tenancies (Refs & Annos)
Subchapter B. Repair or Closing of Leasehold (Refs & Annos)

V.T.C.A., Property Code § 92.0563

§ 92.0563. Tenant's Judicial Remedies

Currentness

(a) A tenant's judicial remedies under [Section 92.056](#) shall include:

- (1) an order directing the landlord to take reasonable action to repair or remedy the condition;
- (2) an order reducing the tenant's rent, from the date of the first repair notice, in proportion to the reduced rental value resulting from the condition until the condition is repaired or remedied;
- (3) a judgment against the landlord for a civil penalty of one month's rent plus \$500;
- (4) a judgment against the landlord for the amount of the tenant's actual damages; and
- (5) court costs and attorney's fees, excluding any attorney's fees for a cause of action for damages relating to a personal injury.

(b) A landlord who knowingly violates [Section 92.006](#) by contracting orally or in writing with a tenant to waive the landlord's duty to repair under this subchapter shall be liable to the tenant for actual damages, a civil penalty of one month's rent plus \$2,000, and reasonable attorney's fees. For purposes of this subsection, there shall be a rebuttable presumption that the landlord acted without knowledge of the violation. The tenant shall have the burden of pleading and proving a knowing

violation. If the lease is in writing and is not in violation of [Section 92.006](#), the tenant's proof of a knowing violation must be clear and convincing. A mutual agreement for tenant repair under [Subsection \(g\) of Section 92.0561](#) is not a violation of [Section 92.006](#).

(c) The justice, county, and district courts have concurrent jurisdiction in an action under Subsection (a).

(d) If a suit is filed in a justice court requesting relief under Subsection (a), the justice court shall conduct a hearing on the request not earlier than the sixth day after the date of service of citation and not later than the 10th day after that date.

(e) A justice court may not award a judgment under this section, including an order of repair, that exceeds \$20,000, excluding interest and costs of court.

(f) An appeal of a judgment of a justice court under this section takes precedence in county court and may be held at any time after the eighth day after the date the transcript is filed in the county court. An owner of real property who files a notice of appeal of a judgment of a justice court to the county court perfects the owner's appeal and stays the effect of the judgment without the necessity of posting an appeal bond.

Credits

Added by [Acts 1989, 71st Leg., ch. 650, § 8, eff. Aug. 28, 1989](#). Amended by [Acts 2009, 81st Leg., ch. 225, § 1, eff. Jan. 1, 2010](#); [Acts 2023, 88th Leg., ch. 89 \(S.B. 1259\), § 1, eff. Sept. 1, 2023](#); [Acts 2023, 88th Leg., ch. 861 \(H.B. 3474\), § 3.003\(a\), eff. Sept. 1, 2023](#).

Editors' Notes

REPEAL OF (D)

<S.Ct. TX Order 13-0006 (Docket No. 13-9049), dated April 15, 2013, provided for the repeal of (d), however, only the Texas Legislature has authority to amend statutes.>

O'CONNOR'S CROSS REFERENCES

See also [Prop. Code §§92.260, 94.159](#); TRCP 500-507, 509; *O'Connor's Texas COA*, "Judicial remedies," ch. 16-F, §3.1; *O'Connor's Texas COA*, "Filing suit," ch. 16-F, §6.

O'CONNOR'S ANNOTATIONS

American Campus Cmty., Inc. v. Berry, 667 S.W.3d 277, 280 (Tex.2023). "[Ps] sued [D], alleging that [D] violated [Prop. Code] §92.056(g) ... by omitting required language from its leases. At 287-88: [Ps] suggest two avenues by which Ch. 92 might authorize a claim premised solely on the omission of the §92.056(g) lease term. First, they point to [Prop. Code] §92.0563(a)(3).... As [Ps] see it, any violation of §92.056 ... gives rise to 'judicial remedies under §92.056,' including the civil penalty. This is incorrect. [¶] Section 92.0563 attaches a civil penalty to '[a] tenant's judicial remedies under §92.056.' [However, n]othing in [§92.056(b)] mentions required lease language. Instead, subsection (b) creates a limited cause of action for a tenant who is dissatisfied with his landlord's efforts to repair a dangerous condition. This is the sole 'judicial remed[y] under §92.056.' [¶] Subsection (g) ... appears as a stand-alone requirement ... and plays no role in the cause of action described by subsections (a) through (f). ... The 'judicial remedies under §92.056,' which include the civil penalties sought by [Ps], do not include a claim for omitted lease language. [¶] Second, [Ps] rely on §92.0563(b).... [¶] The 'landlord's duty to repair under this subchapter' is a creature of statute, not of contract. This statutory duty binds landlords whether or not it also appears in a lease. A lease's failure to mention the statutory duty is in no sense a waiver of the statutory duty. Section 92.0563(b) authorizes a claim against a landlord who knowingly contracts to waive his statutory duties, not a claim against a landlord who fails to state his statutory duties in his leases. [¶] The statute authorizes lawsuits over defective or untimely repairs, under certain circumstances. And it authorizes lawsuits against landlords who contract to waive their statutory obligations. It does not authorize lawsuits, or any kind of monetary recovery, against landlords who omit from their leases the provision required by §92.056(g)."

V. T. C. A., Property Code § 92.0563, TX PROPERTY § 92.0563

Current through the end of the 2025 Regular and Second Called Sessions of the 89th Legislature.